

When the defendant in *Woley* eventually filed a motion to dismiss, his representation in open court estopped him from seeking dismissal. (*Id.* at p. 409.) The facts here are more similar to *Jordan v. Superstar Sandcars* (2010) 182 Cal.App.4th 1416, where the plaintiffs argued that the defendants were “estopped from relying on the five-year dismissal statute, section 583.310, because counsel for defendants submitted a declaration stating he was not available for trial until after September 2008, leading plaintiffs to believe defendants did not object to trying the case after the five-year trial deadline of June 6, 2008.” (*Id.* at p. 1422.) The court “rejected the doctrine of equitable estoppel since plaintiffs were aware the five-year trial period ran on June 6, 2008, and it was not reasonable to assume defendants were willing to waive the deadline.” (*Id.* at p. 1423.) “Any ambiguity or confusion created by defense counsel mentioning his unavailability beyond the cutoff date could have been clarified by plaintiffs’ counsel, who was responsible for ensuring the case was tried before the five-year period expired. Plaintiffs have shown no conduct on the part of defendants that would have lulled plaintiffs into a reasonable false sense of security.” (*Ibid.*) Here, similarly, representations of defendants regarding discovery timelines or deposition dates should have triggered Plaintiffs’ counsel to clarify or seek a stipulation to try the case beyond the five-year mark if the defendants expressed a desire to perform something beyond the five-year deadline.

Ruling

Based on the analysis above, the Court **GRANTS** North American Title Company’s Motion to Dismiss and the joinders therein. Moving party to prepare the order after hearing. One consolidated order shall be prepared for the lead motion and the joinders.

14. 9:00 AM CASE NUMBER: MSC21-00646
CASE NAME: GONZALEZ VS KEADING FAMILY TRUST
JOINDER IN DEFENDANT NORTH AMERICAN TITLE INSURANCE COMPANY'S MOTION TO DISMISS
FILED BY: KEADING, HILJA
TENTATIVE RULING:

See LINE 13, above.

15. 9:00 AM CASE NUMBER: MSC21-00646
CASE NAME: GONZALEZ VS KEADING FAMILY TRUST
JOINDER TO NORTH AMERICAN TITLE INSURANCE COMPANY'S MOTION TO DISMISS
FILED BY: NRT WEST, INC.
TENTATIVE RULING:

See LINE 13, above.